UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF WISCONSIN
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WESTERN DISTRICT OF WISCONSIN

JENNIFER OLSON,
Plaintiff,
v.
MILK SPECIALTIES COMPANY d/b/a ACTUS NUTRITION,
Defendant.

Case No. 3:26-cv-01012

JENNIFER OLSON,
Plaintiff,
v.
MILK SPECIALTIES COMPANY D/B/A ACTUS NUTRITION,
Defendant.

Case No. 3:26-cv-01012

COMPLAINT

CIVIL COMPLAINT

I. NATURE OF THE CASE

1. Jennifer Olson began working at Actus Nutrition looking for a place where she could build a career. After her coworkers learned that she was married to a woman, they began treating her differently because she is a lesbian.

2. Olson did not make her sexual orientation a workplace issue. Her coworkers did. Jacob Schwalbach stopped treating Olson the way he had before learning about her wife. He became less willing to help her, more critical of her work, and at times refused to communicate with her directly. Then, on June 1, 2026, Schwalbach entered Olson's work area discussing an attempted burning of a Pride flag. He stated that he wished the person responsible had succeeded and said, in substance, "Fuck them, LGBTQ." When Olson reminded him that she was standing right there, Schwalbach responded: "Oh yeah, that's right. You're one of them."

3. Olson tried to keep working. On June 7, Schwalbach again entered Olson's work area and announced, "Happy Dairy Month, everybody," while glaring at her. In light of his prior comments and the change in his treatment of her after learning that she had a wife, Olson believed the discriminatory conduct was continuing. She therefore documented what was happening at work and later provided an audio recording to Actus Human Resources.

4. Actus placed Schwalbach and Timothy Skidmore on paid leave through the end of June while corporate Human Resources investigated.

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Actus advised Olson that termination was being considered. It later informed Olson that, after consulting corporate counsel, it would not rely upon portions of the recording and would return both employees to work.

5. By the time Actus returned Schwalbach and Skidmore to work, both men knew that Olson had reported them and had been warned against retaliation. Olson told Actus that she was afraid to return to work around the employees she had reported and asked what the company would do to protect her. Actus did not separate them from Olson. Instead, it permitted Olson to arrive and punch in several minutes earlier to avoid them during shift change. Olson nevertheless returned to work on June 19 and completed her shift without incident. She returned again for her next scheduled shift on June 21.

II. PARTIES

Plaintiff

13. **Plaintiff Jennifer Olson** ("Olson") is an adult resident of Wisconsin. Beginning on April 20, 2026, Olson was employed by Defendant at its Actus Nutrition facility in Sparta, Wisconsin.

Defendant

14. **Defendant Milk Specialties Company d/b/a Actus Nutrition ("Actus")** is a Foreign Business Corporation with its Principal Office located at 7500 Flying Cloud Drive Suite 500, Eden Prairie, MN 55344. Actus conducts business in Wisconsin and operates the facility located at 427 E. Wisconsin Street, Sparta, Wisconsin 54656.

15. At all times relevant to this action, Actus was Olson's employer and exercised control over the terms and conditions of her employment, including her job assignment, training, scheduling, workplace rules, discipline, Human Resources processes, leave and accommodation processes, and termination.

16. Actus acted through its officers, managers, supervisors, Human Resources personnel, employees, agents, and other representatives acting within the course and scope of their employment or agency.

III. JURISDICTION, VENUE, AND ADMINISTRATIVE EXHAUSTION

17. This action arises under Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. §§ 2000e et seq. This Court has subject-matter jurisdiction pursuant to 28 U.S.C. § 1331 and 42 U.S.C. § 2000e-5(f)(3).

10. Venue is proper in the United States District Court for the Western District of Wisconsin pursuant to 42 U.S.C. § 2000e-5(f)(3) because the unlawful employment practices occurred at Actus's Sparta, Wisconsin facility in Monroe County, Wisconsin.

11. On August 21, 2026, the EEOC issued Olson a Notice of Right to Sue.

12. Olson commenced this action within ninety days of receiving the Notice of Right to Sue and has satisfied the administrative prerequisites to bringing her Title VII claims.

IV. FACTUAL ALLEGATIONS

A. Olson Begins Work at Actus and Is Treated Differently After Coworkers Learn She Is Married to a Woman

13. Olson began working for Actus at its Sparta, Wisconsin facility on April 20, 2026.

14. Actus assigned Olson to train and work in the dryer area as a Production Operator. The position required her, as a new employee, to learn Actus's production equipment, operating procedures, monitoring requirements, sampling procedures, cleaning processes, and other plant practices from more experienced employees.

15. Before Schwalbach learned that Olson was married to a woman, he answered Olson's questions, assisted her when she needed help, and demonstrated work she was still learning.

16. In approximately mid-May 2026, during an ordinary workplace conversation about plans outside of work, Olson mentioned that she and her wife had plans together.

17. Schwalbach, Skidmore, and Scott were present. After coworkers asked what Olson meant by "wife," Olson explained that she was married to a woman, identified her wife as Selena, and showed them photographs of her.

18. After Schwalbach learned that Olson was married to a woman, his treatment of her changed.

19. Schwalbach became less willing to assist Olson with work she was still learning.

20. Schwalbach became increasingly impatient when Olson asked questions and increasingly critical of her work.

24. Actus assigned Olson to train and work in the dryer area as a Production Operator. The position required her, as a new employee, to learn Actus's production equipment, operating procedures, monitoring requirements, sampling procedures, cleaning processes, and other plant practices from more experienced employees.

25. Among the employees who trained or instructed Olson were Hunter Scott ("Scott"), Timothy Skidmore ("Skidmore"), Dan Faldema ("Faldema"), and Jacob Schwalbach ("Schwalbach"). Olson depended on those employees to answer questions, demonstrate unfamiliar tasks, and teach her how to perform the position safely and competently.

26. During Olson's first weeks at Actus, her working relationships with the employees training her were generally professional.

27. Before Schwalbach learned that Olson was married to a woman, he answered Olson's questions, assisted her when she needed help, and demonstrated work she was still learning.

28. Olson did not make her sexual orientation a subject of workplace conversation when she began working at Actus.

29. In approximately mid-May 2026, during an ordinary workplace conversation about plans outside of work, Olson mentioned that she and her wife had plans together.

30. Schwalbach, Skidmore, and Scott were present. After coworkers asked what Olson meant by "wife," Olson explained that she was married to a woman, identified her wife as Selena, and showed them photographs of her.

31. After Schwalbach learned that Olson was married to a woman, his treatment of her changed.

32. Schwalbach became less willing to assist Olson with work she was still learning. Schwalbach became increasingly impatient when Olson asked questions and increasingly critical of her work.

33. 21. Schwalbach began telling Olson that tasks were "her job," questioning why she Schwalbach became increasingly impatient when Olson asked questions and needed help, directing her to consult her notes, and suggesting that she should already know how increasingly critical of her work.

to perform work she had been learning for only approximately one month.

34. Schwalbach began telling Olson that tasks were "her job," questioning why she

22. Schwalbach also began avoiding direct communication with Olson. On occasions needed help, directing her to consult her notes, and suggesting that she should already know when Olson was standing nearby within earshot, Schwalbach would direct Scott to relay work how to perform work she had been learning for only approximately one month.

instructions to Olson rather than speak to Olson himself, including telling Scott, in substance, to

35. "tell her" what needed to be done. Schwalbach also began avoiding direct communication with Olson. On occasions

B. Schwalbach Makes His Anti-LGBTQ Hostility Explicit and Olson Reports the Discrimination to Actus

when Olson was standing nearby within earshot, Schwalbach would direct Scott to relay work instructions to Olson rather than speak to Olson himself, including telling Scott, in

23. On June 1, 2026, Olson was working in the dryer operator room with Skidmore substance, to "tell her" what needed to be done.

and Folkema when Schwalbach entered and raised a news report concerning an individual in

36. On one occasion after Schwalbach learned that Olson was married to a woman, Appleton, Wisconsin, who had attempted to burn a Pride flag.

Olson and Schwalbach were working together to clear a plugged dryer funnel by striking

24. Schwalbach stated, in substance, that he wished the individual had succeeded and the equipment with hammers.

"Fuck them LGBTQ."

37. 25. During that work, Schwalbach repeatedly criticized Olson's efforts, told her she Olson responded by reminding Schwalbach that she was standing directly in front of him, stating words to the effect of, "Hello, I'm right here."

was performing the task incorrectly, and emphasized that she could not strike the

26. Schwalbach responded, "Oh yeah, that's right. You're one of them." equipment as hard as he could.

27. Schwalbach also contrasted Pride Month with Wisconsin's recognition of Dairy

Month, stating in substance that it was "Dairy Month," not LGBTQ month.

B. Schwalbach Makes His Anti-LGBTQ Hostility Explicit and Olson Reports the

28. On June 7, 2026, Olson was again working in the dryer area when Schwalbach **Discrimination to Actus**

entered and announced, "Happy Dairy Month, everybody," while glaring at Olson.

38. 29. On June 1, 2026, Olson was working in the dryer operator room with Skidmore and Olson understood Schwalbach's comments as communicating that recognition of

LGBTQ persons was illegitimate or objectionable and that Schwalbach was hostile to

Folkema when Schwalbach entered and raised a news report concerning an individual in

LGBTQ people, including Olson personally. Appleton, Wisconsin, who had attempted to burn a Pride flag.

30. Later that day, Olson reported the matter to Actus supervisor Alan Zin.

39. Schwalbach stated, in substance, that he wished the individual had succeeded and

31. Zin told Olson that he would contact Stephanie Armstrong in Human Resources "Fuck them LGBTQ."

concerning her complaint.

52. 32. Olson also contacted Armstrong directly that evening and provided Actus with an Corporate Human Resources thereafter interviewed Olson concerning the June 1 audio recording documenting the workplace conduct about which she was complaining. incident, the change in Schwalbach's treatment of her, and the circumstances that caused

33. Armstrong reviewed the recording and thereafter informed Olson that the matter Olson to believe she was being discriminated against.
needed to be escalated within Actus.

53. Actus suspended Schwalbach and Skidmore without pay while it investigated

34. By the evening of June 7, Actus had actual notice that Olson was reporting Olson's complaint.
discriminatory workplace conduct based upon her sexual orientation.

54. 35. During the investigation, corporate Human Resources informed Olson that the Corporate Human Resources thereafter interviewed Olson concerning the June 1 incident, the change in Schwalbach's treatment of her, and the circumstances that caused Skid Olson allegations were sufficiently serious that termination of Schwalbach and Skidmore was to believe she was being discriminated against. being considered.

36. Actus suspended Schwalbach and Skidmore without pay while it investigated Olson's complaint.

C. Actus Returns Schwalbach and Skidmore to Work, and the Workplace Harassment
C. Actus Returns Schwalbach and Skidmore to Work, and the Workplace Harassment
Escalates into a Violent Threat
Escalates into a Violent Threat

55. 37. On June 15, 2026, corporate Human Resources informed Olson that Schwalbach On June 15, 2026, corporate Human Resources informed Olson that Schwalbach and Skidmore would be returned to work. and Skidmore would be returned to work.

56. 38. Actus told Olson that, after consulting corporate counsel, it had concluded that it Actus told Olson that, after consulting corporate counsel, it had concluded that it could not rely upon portions of the recording because Olson had left the room while the could not rely upon portions of the recording because Olson had left the room while the recording continued. recording continued.

39. Actus further told Olson that terminating Schwalbach and Skidmore based upon

57. Actus further told Olson that terminating Schwalbach and Skidmore based upon the the recording could expose Actus to grievances or wrongful-termination challenges through the recording could expose Actus to grievances or wrongful-termination challenges through employees' union. the employees' union.

40. Actus nevertheless knew independently that Olson had personally heard and

58. Actus nevertheless knew independently that Olson had personally heard and reported Schwalbach's remarks, including his hostility toward LGBTQ people and his reported Schwalbach's June 1 remarks, including his hostility toward LGBTQ people and statement identifying Olson as "one of them." his statement identifying Olson as "one of them."

41. By June 15, Schwalbach and Skidmore knew that Olson had reported their conduct and that her complaint had resulted in their suspension from work.

68. Olson nevertheless returned to work on June 19 and completed her shift without incident.

69. Schwalbach and Skidmore were not working Olson's shift on June 19.

70. Olson did not work the night of June 20.

71. On June 21, 2026, Olson returned to Actus for her next scheduled shift.

72. Olson arrived at approximately 5:45 p.m., obtained her work uniform, and entered the women's locker room to prepare for work.

73. Olson had an assigned blue metal locker in the women's locker room. Her name was displayed on the outside of the locker, identifying it as hers.

74. Olson opened her assigned locker and discovered a message written in black marker on the inside of the locker door.

75. The message stated, as written: **"Your done Dike"** and **"Snitchs get stit."**

76. Olson understood "Dike" to be a misspelled use of the anti-lesbian slur "dyke," and understood "Snitchs get stit" to mean "snitches get stitches."

77. Olson had last used the locker when she completed her June 19 night shift on the morning of June 20, 2026. The message was not present when she left.

78. Olson discovered the message when she returned for her next scheduled shift at approximately 5:45 p.m. on June 21, 2026.

79. Schwalbach and Skidmore each worked at the Sparta facility during portions of the period between Olson's departure on the morning of June 20 and her return at approximately 5:45 p.m. on June 21.

80. Olson customarily left her locker shut when she finished work. When she approached it on June 21, the door appeared shut but was not fully latched.

42. After Actus informed Olson that Schwalbach and Skidmore would return, Olson asked corporate Human Resources what Actus intended to do to protect her and permit her to work safely.

43. Corporate Human Resources told Olson, in substance, that there was little or nothing further Actus could do.

44. Actus did not provide a plan that separated Schwalbach or Skidmore from Olson within the facility.

45. Actus permitted Olson to arrive and punch in at approximately 5:45 p.m. for her 6:00 p.m. shift in an effort to avoid encountering Schwalbach during shift change.

46. That measure did not separate Schwalbach or Skidmore from Olson within the facility or restrict their access to the areas where Olson worked.

47. Olson nevertheless returned to work on June 19 and completed her shift without incident.

48. Schwalbach and Skidmore were not working Olson's shift on June 19.

49. On June 21, 2026, Olson returned to Actus for her next scheduled shift.

50. Olson arrived at approximately 5:45 p.m., obtained her work uniform, and entered the women's locker room to prepare for work.

51. Olson had an assigned blue metal locker in the women's locker room. Her name was displayed on the outside of the locker, identifying it as hers.

52. Olson opened her assigned locker and discovered a message written in black marker on the inside of the locker door.

53. The message stated, as written: "Your done Dike" and "Snitchs get stit."

54. Olson understood "Dike" to be a misspelled use of the anti-lesbian slur "dyke," and understood "Snitchs get stit" to mean "snitches get stitches."

55. Olson immediately photographed the message, reported it to Human Resources and Actus plant management, and left the facility. At Actus's direction, she went directly to the Sparta Police Department and reported the threat.

56. Within minutes of Olson discovering the message, Actus therefore knew that the employee who had recently reported anti-LGBTQ discrimination had returned to work and found an anti-lesbian and retaliatory threat inside her assigned locker.

57. On July 23, 2026, Olson expressly notified Actus that she remained subject to a continuous doctor-ordered medical restriction and requested the paperwork necessary to pursue short-term disability benefits. Five days later, on July 28, Actus terminated her employment.

58. Actus stated that it terminated Olson because information from her healthcare provider indicated that she could not perform the Production Operator position, with or without accommodation, because remote work was not feasible, and because Actus could no longer continue holding her position open.

59. On August 11, Voya subsequently approved Olson's short-term-disability benefits beginning July 23 and approved non-FMLA medical leave from July 23 through August 21, 2026. The approved leave period therefore included July 28, the date Actus terminated Olson's employment.

60. Actus's treatment of the employees implicated in Olson's discrimination complaint also forms part of the circumstances surrounding the discharge. Actus initially suspended Schwalbach and Skidmore, but ultimately returned them to work after advising Olson that terminating them could expose Actus to grievances or wrongful-termination challenges through the Union.

61. Olson does not allege that Schwalbach or Skidmore were similarly situated in all respects for every purpose. Their treatment is nevertheless relevant to the overall circumstances because Actus elected to preserve their employment after Olson's discrimination complaint, while approximately five weeks after the discriminatory workplace hostility escalated into the locker threat, Actus terminated Olson.

62. The circumstances surrounding Olson's discharge include the change in her treatment after her sexual orientation became known; express anti-LGBTQ hostility directed at her; Actus's actual knowledge of that hostility; the failure of Actus's initial response to prevent

207. Actus stated that it terminated Olson because information from her healthcare provider indicated that she could not perform the Production Operator position, with or without accommodation, because remote work was not feasible, and because Actus could no longer continue holding her position open. Compl. ¶¶ 120–124.

208. Actus knew when it relied upon Olson's inability to return that her continuous inability to work at the Sparta facility began immediately after the anti-lesbian and anti-"snitch" threat of which Actus had actual notice.

209. On August 11, Voya subsequently approved Olson's short-term-disability benefits beginning July 23 and approved non-FMLA medical leave from July 23 through August 21, 2026. The approved leave period therefore included July 28, the date Actus terminated Olson's employment. Compl. ¶¶ 125–129.

210. Actus's treatment of the employees implicated in Olson's discrimination complaint also forms part of the circumstances surrounding the discharge. Actus initially suspended Schwalbach and Skidmore, but ultimately returned them to work after advising Olson that terminating them could expose Actus to grievances or wrongful-termination challenges through the Union. Compl. ¶¶ 53–60.

211. Olson does not allege that Schwalbach or Skidmore were similarly situated in all respects for every purpose. Their treatment is nevertheless relevant to the overall circumstances because Actus elected to preserve their employment after Olson's discrimination complaint, while approximately five weeks after the discriminatory workplace hostility escalated into the locker threat, Actus terminated Olson.

further discriminatory conduct; the subsequent violent anti-lesbian threat; Actus's knowledge that the threat precipitated Olson's inability to return; Olson's continuing efforts to preserve her employment; Actus's treatment of the employees implicated in her complaint; the timing of her termination; and Actus's subsequent defense of that termination. Considering those circumstances as a whole, Olson alleges that her sex and sexual orientation were a motivating factor in the decision to discharge her.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Jennifer Olson respectfully requests that the Court enter judgment in her favor and against Defendant Milk Specialties Company d/b/a Actus Nutrition and award the following relief:

A. Declare that Defendant subjected Plaintiff to unlawful discrimination, a hostile work environment, retaliation, and discriminatory and retaliatory discharge in violation of Title VII;

B. Award Plaintiff all back pay, lost wages, lost benefits, and other employment compensation she would have received but for Defendant's unlawful conduct, together with prejudgment interest;

C. Order Plaintiff's reinstatement to an appropriate position with restored seniority, compensation, and benefits, or, if reinstatement is not feasible or appropriate, award Plaintiff front pay in lieu of reinstatement;

D. Award Plaintiff compensatory damages as permitted by 42 U.S.C. § 1981a, including damages for emotional pain and suffering, inconvenience, humiliation, and other pecuniary and nonpecuniary losses caused by Defendant's unlawful conduct;

E. Award punitive damages pursuant to 42 U.S.C. § 1981a(b)(1) upon proof that Defendant engaged in unlawful discrimination or retaliation with malice or reckless indifference to Plaintiff's federally protected rights;

F. Award such equitable and injunctive relief as the Court determines necessary and appropriate to remedy Defendant's violations of Title VII and prevent further discrimination and retaliation;

G. Award Plaintiff her reasonable attorney fees, litigation expenses, and taxable costs pursuant to 42 U.S.C. § 2000e-5(k) and other applicable law;

H. Award post-judgment interest as provided by law; and

I. Award such other and further legal or equitable relief as the Court deems just and appropriate.

JURY DEMAND

Plaintiff demands a trial by jury on all claims and issues so triable.

anguish, humiliation, and other pecuniary and nonpecuniary losses caused by Defendant's unlawful conduct;

E. Award punitive damages pursuant to 42 U.S.C. § 1981a(b)(1) upon proof that Defendant engaged in unlawful discrimination or retaliation with malice or reckless indifference to Plaintiff's federally protected rights;

F. Award such equitable and injunctive relief as the Court determines necessary and appropriate to remedy Defendant's violations of Title VII and prevent further discrimination and retaliation;

JURY DEMAND

Plaintiff demands a trial by jury on all claims and issues so triable.

DATED this 8th day of October, 2026

Dated: October 8, 2026

Respectfully submitted,

Eau Claire Legal, LLC

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/s/ David Carlson

/s/ David Carlson

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